



Types of Tort

A first map of civil wrongs in the law of England and Wales. Some leading decisions came from other UK jurisdictions and shaped the common law more widely.

1. What does a tort protect?

A **tort** is a civil wrong for which the law may provide a remedy. The person bringing the claim is the **claimant**; the person sued is the **defendant**. Tort law protects different **interests**: the body, mental health, reputation, land, goods and, in some circumstances, money. An interest tells us what the law may protect. A **cause of action**, such as negligence, tells us the legal route for a particular claim.

Three questions: (1) What interest was affected? (2) Which tort or statute could give a claim, and what must be proved? (3) What remedy could the court give? A broken item or an unhappy outcome does not, by itself, establish liability.

2. A practical map

Body or recognised psychiatric illness: negligence, and sometimes duties under legislation concerning premises or defective products. **Reputation:** defamation. **Land:** trespass to land or private nuisance. **Goods:** trespass to goods or conversion. **Money:** sometimes negligence, or deceit if a dishonest misrepresentation causes loss. One event can raise more than one question; each legal route has its own requirements.

Remedy means a court response, such as **damages** (money) or, where appropriate, an **injunction** (an order to stop or prevent conduct). The remedy follows a successful legal claim; it is not itself a type of tort.

Invented example: A driver hits Li while reversing a van. Li's bodily injury is the protected interest; negligence may be the cause of action. Medical costs and pain are possible consequences for a damages assessment. We must still ask whether the driver owed and breached a duty, caused the injury, and whether the loss is legally recoverable.



Body and mental health

3. Negligence: a duty is only the beginning

A negligence claim ordinarily requires a duty of care, breach of that duty, causation and recoverable damage. **Duty of care** means a legal obligation to take reasonable care in the relevant circumstances. It is not a promise that nobody will ever be hurt. [1]

4. Donoghue v Stevenson [1932] AC 562 [1]

Mrs Donoghue alleged that a decomposed snail was in an opaque bottle of ginger beer bought for her by a friend, and that she became ill after drinking it. She had no contract with the manufacturer, Mr Stevenson. The case arose in Scotland and reached the House of Lords. The judges considered whether a manufacturer could owe a consumer a duty of care despite the lack of a contract.

Who won, and why? Mrs Donoghue won the House of Lords appeal. The majority held that her pleaded facts, if proved, disclosed a possible duty of care owed by the manufacturer to the ultimate consumer. The case was sent back for proof; this appeal did **not** establish the alleged snail as fact or award her final damages. [1]

5. Psychiatric injury and statutory routes

The law may compensate a **recognised psychiatric illness** caused by negligence, but distress alone is not automatically a recoverable injury. Additional rules can matter, especially for a person who witnessed injury to someone else. This area needs a separate guide; do not assume that every frightening experience creates a claim.

Legislation also matters. Under the **Occupiers' Liability Act 1957**, an occupier owes a common duty of care to visitors in relation to dangers due to the state of premises or things done or omitted there. Under **Part I of the Consumer Protection Act 1987**, liability for damage caused by a defective product may arise against persons specified by that Act. These are legal routes, not new kinds of bodily interest. [2, 3]



Reputation and publication

6. Defamation: a statement reaches someone else

Defamation concerns injury to reputation. **Libel** usually concerns a lasting form such as writing; **slander** usually concerns spoken or other transient words. **Publication** in this legal context means communicating the statement to at least one person other than the claimant. It does not require a newspaper, a website or a crowd. Words said only to the claimant, with nobody else receiving them, do not meet that publication requirement. [4]

For a claim governed by the **Defamation Act 2013**, a statement is not defamatory unless its publication has caused or is likely to cause **serious harm** to the claimant's reputation. The Act also provides a defence of **truth**. This overview does not list every requirement or defence. It would be misleading to teach that every rude remark or every private exchange is actionable. [4, 5]

Invented comparison: A tells Chen, alone, “you cheated”: this lacks publication to a third person. If A says the same thing to Chen's employer, publication may exist even though the conversation is private. Whether there is a viable defamation claim still depends on meaning, serious harm and any defence, among other issues.

7. Lachaux v Independent Print Ltd [2019] UKSC 27 [4]

Mr Lachaux complained about newspaper articles containing allegations about his conduct towards his former wife. The publishers challenged the finding that the serious-harm requirement was met. The Supreme Court explained that serious harm must be established as a matter of fact, while future harm may be inferred from relevant evidence and circumstances.

Who won, and why? Mr Lachaux won this Supreme Court appeal: the publishers' appeals were dismissed, and the finding of serious harm stood. This decided the disputed **serious-harm issue**; it was not a final ruling that every element of defamation had been proved or that damages were payable. [4]



Land and goods

8. Land: direct intrusion or unreasonable interference

Trespass to land commonly concerns a direct, unjustified entry onto land in another person's possession. **Private nuisance** concerns a substantial and unreasonable interference with the ordinary use and enjoyment of land. Noise, smells or intrusive activity may raise nuisance questions, depending on their nature and context. The torts are distinct: a neighbour need not step onto your land to interfere with its enjoyment.

Invented comparison: An unauthorised shortcut through Mei's garden suggests trespass. Repeatedly directing powerful lights into her bedroom may suggest private nuisance. These are starting points for analysis, not automatic findings of liability.

9. Fearn v Board of Trustees of the Tate Gallery [2023] UKSC 4 [6]

A viewing platform at Tate Modern gave many visitors a direct view into nearby glass-walled flats. The residents sued in private nuisance. The Supreme Court examined the unusual and intense visual intrusion, rather than treating every ordinary view into another building as a nuisance.

Who won, and why? The flat owners won their Supreme Court appeal by a 3–2 majority. The majority held that the Tate's use of its viewing platform caused an actionable, substantial interference with the ordinary use and enjoyment of the flats. The case was sent back to decide the appropriate remedy; the Supreme Court did not itself fix damages. [6]

10. Goods: touching versus treating them as your own

Trespass to goods concerns direct wrongful interference with goods in another's possession. **Conversion** concerns dealing with goods in a way that is seriously inconsistent with the rights of the person entitled to them, for example selling another person's laptop as your own. The Torts (Interference with Goods) Act 1977 addresses remedies and related issues for such wrongs. A narrow rule traditionally associated with *Rylands v Fletcher* can also concern escapes from land; it is best studied separately rather than treated as a general rule for every damaged object. [7]



Money and responsibility

11. Financial loss is not one single tort

Consequential financial loss follows injury or property damage: a worker loses wages while recovering from a broken arm. **Pure economic loss** is financial loss without accompanying injury or damage to the claimant's property. Negligence has important limits on recovery for pure economic loss; it is unsafe to say that every careless statement causing a bad investment creates liability. The precise route depends on the facts and the applicable duty rules.

Deceit is a different tort based on fraudulent misrepresentation that causes loss. A statement may be wrong without being fraudulent. The legal test for fraud includes knowledge of falsity, lack of honest belief in truth, or recklessness as to whether the statement is true. [8]

12. Derry v Peek (1889) 14 App Cas 337 [8]

A tramway company prospectus said it had the right to use steam power, but using that power still required approval by the Board of Trade. Mr Peek bought shares and later sued the directors for deceit when the approval was refused. The House of Lords considered whether the directors had made the statement fraudulently; the findings showed they honestly believed it to be true.

Who won, and why? The directors won in the House of Lords. Their statement was misleading, but their honest belief prevented a finding of fraud on the facts found. Mr Peek therefore failed in his **deceit** claim. The decision does not say that inaccurate investment statements can never create liability under a different legal rule. [8]

13. Vicarious liability: who may answer for a tort?

Vicarious liability can make one person or organisation answer for another's tort in a legally qualifying relationship and connection with the wrongdoing. For example, an employer may sometimes be responsible for a tort committed by an employee in the course of employment. It is a rule about **responsibility for a tort**, not a new protected interest or a separate kind of damage. [9]

Reading method: Identify the harm, choose a possible claim, test its elements, then ask who can be held responsible and what remedy follows. Do not use “personal injury,” “negligence,” and “vicarious liability” as interchangeable names for one thing.



Check your understanding

1. Is a protected interest the same as a cause of action?

Answer: No. Reputation is an interest; defamation is a possible cause of action protecting it.

2. Did Mrs Donoghue receive a final damages award from the House of Lords?

Answer: No. She won the appeal because the alleged facts could support a duty of care if proved; the case returned for proof.

3. Must a defamatory statement be made to the general public?

Answer: No. Communication to at least one person other than the claimant can satisfy publication. Other requirements still apply.

4. What exactly did Mr Lachaux win in the Supreme Court?

Answer: The publishers lost their appeal on the serious-harm issue. That was not a final damages judgment.

5. How do trespass to land and private nuisance differ?

Answer: Trespass commonly addresses direct unauthorised entry; nuisance addresses substantial unreasonable interference with use and enjoyment of land.

6. Who won the appeal in Fearn, and what remained?

Answer: The flat owners won because the unusual viewing-platform intrusion was actionable private nuisance; the remedy still had to be determined.

7. Why did the directors win in Derry v Peek?

Answer: Their honest belief in the prospectus statement meant fraud was not established for the deceit claim.

8. Is vicarious liability a separate tort protecting money?

Answer: No. It is a rule that may make another party responsible for an underlying tort.



Primary sources and further reading

Legal materials checked 4 October 2026. The everyday examples are invented. Cases below are described at the stage actually decided by the cited court.

[1] Donoghue v Stevenson [1932] UKHL 100. House of Lords judgment on the pleaded duty and successful appeal. [Read source](#)

[2] Occupiers' Liability Act 1957, section 2. Official legislation on the common duty of care to visitors. [Read source](#)

[3] Consumer Protection Act 1987, Part I. Official legislation on liability for defective products. [Read source](#)

[4] Lachaux v Independent Print Ltd [2019] UKSC 27. Official Supreme Court judgment on publication and serious harm. [Read source](#)

[5] Defamation Act 2013, sections 1 and 2. Official legislation on serious harm and the truth defence. [Read source](#)

[6] Fearn v Board of Trustees of the Tate Gallery [2023] UKSC 4. Official Supreme Court judgment on private nuisance and the residents' appeal. [Read source](#)

[7] Torts (Interference with Goods) Act 1977. Official legislation on interference with goods and remedies. [Read source](#)

[8] Derry v Peek [1889] UKHL 1. House of Lords judgment on fraud and the directors' successful appeal. [Read source](#)

[9] Barclays Bank plc v Various Claimants [2020] UKSC 13. Official Supreme Court judgment explaining vicarious liability. [Read source](#)